Able-Bodied Adults Without Dependents Time Limit	Number	Page
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Effective Date:
06/01/2026

Background:
California was under a waiver from the Able-Bodied Adults Without Dependents (ABAWDs) time limit. On July 4, 2025, House of Representatives 1 (H.R. 1) was signed into Federal law. H.R. 1 limited ABAWD time limit waivers to only areas with unemployment rates above 10 percent and removed the ability for waivers to be based on lack of sufficient jobs. These changes eliminated California's statewide ABAWD time limit waiver and California will reimplement the ABAWD time limit for non-waived counties effective June 2026. San Diego is not a waived county and will be required to implement ABAWD time limit provisions.

Purpose:
This section provides updated guidance on the reimplementation of the ABAWD time limit. Applications received and recertifications due on or after June 1, 2026, are required to be evaluated under the updated policy below.

Policy:
There are two work-related policy areas within the CalFresh program, work registration and the ABAWD time limit. An individual is considered an ABAWD if they are between the ages of 18 through 64 and able-bodied without dependent children under 14.

The ABAWD time limit is separate from work registration. Screen for work registration requirements and if not exempt, then screen for an ABAWD exemption. ABAWDs may receive up to three full months of benefits in a 36-month period, unless they meet an exemption or satisfy the work requirement.

1. 36-Month Period

All California counties are on a fixed 36-month period, refer to the table below for the date ranges of these periods.

36-Month Periods
January 1, 2026 – December 31, 2028
January 1, 2029 – December 31, 2031
January 1, 2032 – December 31, 2034

2. Screening for ABAWD Status

Before applying the ABAWD three-month time limit, evaluate individuals for exemptions. Inform households (HHs) with non-exempt ABAWDs of the time limit and work requirement. Screen for ABAWD exemptions at application, recertification, and whenever the HH reports that ABAWD work hours have decreased below 20 per week or 80 hours averaged monthly. ABAWD work hours may include a combination of working, volunteering, and enrollment in a school or a job training program. The screening must be clearly explained to the HH and documented in the case record.

If an ABAWD meets an exemption, then they will remain exempt from the time limit until their next recertification.

3. ABAWD Time Limit Exemptions

ABAWDs meeting one or more of the exemptions below are not subject to the time limit:

- Meeting a work registration exemption, refer to Section 63-901.
    - Please note, ABAWDs between ages 60 and 64 who are work registration exempt solely due to age must meet an additional work registration exemption.
- Under 18 or over 64 years of age.
- Included in a CalFresh HH with an child under the age of 14.
    - The exemption may be applied to multiple HH members.
    - The child may be an ineligible CalFresh HH member.
- Pregnant.
- Participating in an Office of Refugee Resettlement (ORR) training program.
- Indian, Urban Indian, or California Indian under the Indian Health Care Improvement Act (IHCIA). Definitions are below:
    - Indian: Part of an Indian Tribe, band, nation, or other organized group recognized by federal programs.
    - Urban Indians reside in an urban center and are one of the following:
        - A member of a tribe, band, or organized group.
        - Inuit, Aleut, or another Alaska Native.
        - Determined to be an Indian under regulations issued by the:
            - Secretary of the Interior.
            - Secretary of Health and Human Services.
        - **Note**: An urban center is a community with a sufficient Urban Indian population with unmet health needs, needing assistance from the IHCIA.
    - California Indians are one of the following:
        - A member of a federally recognized Indian Tribe.
        - A descendent of an Indian who resided in California on June 1, 1852; a member of the Indian community served by a local Indian Health Service program; and regarded as an Indian by their community.
        - An Indian who holds trust interests in public domain, national forest, or reservation allotments in California.
        - A California Indian listed in the plans for distribution of assets of rancherias and reservations under the Act of August 18, 1958, or a descendant.
- Physically or mentally unfit for employment, this includes those who:
    - Applied for or are receiving temporary or permanent public or private disability benefits.
    - Are obviously unfit for work based on staff observation. Apply this exemption if meeting the work requirement would place unnecessary burden on an individual who is clearly unfit for employment.
        - Potential indicators of obvious unfitness for work include chronic homelessness, substance abuse, domestic violence, being impacted by the Child Welfare and Juvenile Justice systems.
    - Are determined physically or mentally unfit to work by medical or other appropriate personnel.

Note: Do not document personal medical information in the case record.

For verification of ABAWD exemptions, refer to Desk Aid Able-Bodied Adults Without Dependents (ABAWD) Verifications.

4. Work Requirement

ABAWDs who do not meet an ABAWD time limit exemption must satisfy the work requirement to maintain CalFresh eligibility for more than three months in the fixed 36-month period. Each full month in which an ABAWD receives CalFresh and does not meet an ABAWD time limit exemption, the work requirement, or good cause is considered a countable month against their three-month time limit.

The work requirement may be met through 20 hours per week or 80 hours monthly of qualifying activities which can include a combination of working, volunteering, and enrolling in a school or a job training program. Additionally, hours participating in qualifying CalFresh Employment and Training (CFET) activities also meet the work requirement. The table below shows the qualifying activities and number of hours that meet the work requirement.

Qualifying Activities	Description
Working (paid, unpaid, or in-kind)	At least 20 hours per week or 80 hours averaged monthly.
Volunteering or community service	At least 20 hours per week or 80 hours averaged monthly.
Job training program	At least 20 hours per week or 80 hours averaged monthly.
Qualifying CFET Activity	Hours are determined by CFET.

ABAWDs satisfying the work requirement through self-employment must provide verification of total hours worked. Verification may include business records, written statements from individuals or organizations to which they provide service, or a collateral contact. If a collateral contact is used, document the contact's name and phone number or email address in the case record. If self-employment hours cannot be verified through documents or collateral contact, use the ABAWD's self-employment income to calculate the total hours using the method below:

- Subtract self-employment expenses from the gross self-employment income.
- Divide the adjusted income amount by the federal minimum wage.

ABAWDs may voluntarily participate in CFET to satisfy their work requirement. Qualifying CFET components are tracked by the CFET Social Workers. The qualifying CFET components include:

- Workfare.
    - Hours will be determined by the CFET Social Worker.
        - Assigned workfare hours apply to the entire CalFresh HH and not by individual ABAWDs.
    - Completion of assigned workfare hours will satisfy the ABAWD work requirement even if under 20 hours per week.
- Work Experience.
- On-the-Job Training.
- Education.
- Vocational Training.
- Supervised Job Search (SJS).
    - If SJSs are completed in combination with another qualifying CFET component, up to 9 hours per week may count towards meeting the work requirement.
    - SJSs completed without another qualifying CFET component do not satisfy the work requirement.

Please note, SJSs are considered a qualifying activity and up to 20 hours per week may count towards meeting the work requirement if they are administered through:

- The Workforce Innovation and Opportunity Act (WIOA).
- A program of employment and training for veterans operated by the Department of Labor or the Department of Veterans Affairs.

Job training program, volunteer and community service hours may be combined with work or qualifying CFET components to meet the ABAWD work requirement. Qualifying volunteer and community service hours may be completed at a nonprofit or public institution, including religious or community organizations. Qualifying job training programs include those through the San Diego Workforce Partnership or any other program under WIOA. Additionally, activities through an approved Trade Adjustment Assistance program may be applied to the work requirement.

5. Determining Countable Months

A countable month is any month in which an ABAWD subject to the time limit receives CalFresh benefits for a full month while they are not exempt, satisfying the work requirement, or meeting good cause. For additional information on good cause determinations, please review the following section. The county must retroactively correct a time limit record any time during the current 36-month period when the HH provides information or verification regarding an exemption, work hours, or if staff determine there is good cause.

A month is not countable if any of the following are true, the ABAWD:

- Received partial or prorated CalFresh benefits.
- Met an ABAWD time limit exemption for any part of the month.
- Satisfied the work requirement during the month.
- Is determined to have good cause.
- Lived in a waived county or area. For a current list of waived counties, review the California Department of Social Services (CDSS) CalFresh Work and Community Engagement Requirements website: https://www.cdss.ca.gov/inforesources/calfresh/abawd.

Review for countable months used in a 36-month period for ABAWDs who moved from other counties or states. Countable months from other California counties may be reviewed through the California Statewide Automated Welfare System (CalSAWS). Out of state verification of countable months and 36-month time periods may be obtained through written/printed documentation or verbal statement from a Supplemental Assistance Nutrition Program (SNAP) agency. When screening the customer, staff must discuss whether customers have received SNAP benefits in any other state during California's fixed 36-month period.

If an ABAWD moved from a waived county to San Diego County, then apply the time limit rules starting with the first full month of residence in San Diego following the Intercounty Transfer (ICT). Please note that when ICTs include an ABAWD as part of the CalFresh HH, the receiving county is responsible for tracking whether the participant is meeting the ABAWD work requirement starting the month of the ICT.

Refer to the Intercounty Transfer (ICT) Handbook for more information on ICTs for ABAWD HHs.

6. Good Cause Determination

Before applying a countable month against the ABAWD's time limit, determine on a case-by-case basis if good cause exists for not meeting the work requirement. Good cause includes but is not limited to:

- Illness of:
  - the ABAWD.
  - a HH member that requires the presence of the ABAWD.
- A HH emergency.
- A declaration of disaster.
- Lack of transportation.

If good cause is determined, document it in the case record. Verification is not required for good cause, the individual's statement is acceptable unless questionable.

Note: Good cause must be determined for a single month and must be redetermined if additional.

7. Mandatory Mid-Period Report

ABAWD HHs have a mandatory mid-period report and must report within 10-days when ABAWD work hours decrease below 20 per week or 80 hours averaged monthly. ABAWDs in qualifying CFET components, such as workfare, will not be subject to mandatory mid-period reporting as this information is known to the county. Staff may verify an ABAWDs participation in qualifying CFET components via CFET Social Worker documentation in the CalSAWS Journal along with verification of participation hours submitted by the HH. For more information on verifying CFET components, refer to Desk Aid Able-Bodied Adults Without Dependents (ABAWD) Verifications. All other hours such as work, volunteer activities, or any other activities performed by the ABAWD must be reported when they drop below 20 hours per week or an average of 80 hours per month.

When there is a report in a reduction in ABAWD work hours, take the following steps to review if the ABAWD met:

- A work registration exemption, other than the exemption of over age 59.
- An ABAWD time limit exemption.
- The work requirement.
- Good cause criteria.

If the ABAWD does not meet any of the criteria above, then review the case to determine the number of countable months that have been used within the 36-month period. If the ABAWD has not used all three countable months, then they are eligible to receive CalFresh benefits until they meet the ABAWD time limit. If the ABAWD has already received their three countable months, then discontinue the ABAWD for not satisfying the work requirement for three full countable months during the 36-month period. If timely notice cannot be applied and benefits have already been issued, an overissuance must be created.

8. Elderly Simplified Application Project (ESAP) HHs

ESAP HHs are certified for 36 months and do not require recertification interviews. However, if an ESAP HH contains members between the ages 60 through 64, then a time limit exemption screening is required. At ESAP recertification, attempt to complete the time limit exemption screening by first reviewing information available in the case record or on a completed CalFresh Time Limit Exemption Screening Form for ABAWDs (CF 377.11E). If the information provided is adequate to exempt the customer and determine ongoing eligibility, no further contact with the ESAP HH is required. If information provided is questionable or not enough information was received to exempt the ESAP HH from the ABAWD time limit or determine ongoing eligibility, then complete 3 separate attempts to

contact the ESAP HH and document the contact attempts in the case record. If unable to reach the ESAP HH, schedule an interview as detailed in CalFresh Program Guide 63-360. If the ESAP HH fails to complete the required interview, deny the recertification for missed interview.

9. Losing Eligibility

If an ABAWD fails to satisfy the work requirement and receives all three countable months of CalFresh benefits within the 36-month period, then discontinue the ABAWD with timely notice. Establish an overissuance if the following month's benefits have been issued.

The case will remain active if the HH has other eligible members. The discontinued ABAWD will be determined an ineligible HH member, refer to CalFresh Program Guide 63-255, 63-101, and 63-201 for information regarding treatment of income and expenses, resources, and benefits.

10. Regaining Eligibility

An ABAWD who was discontinued for not satisfying the work requirement will remain ineligible until the 36-month period is over unless they meet an exemption, satisfy the work requirement, or move to a waived county or area. ABAWDs who were discontinued due to receiving three full countable months in the fixed 36-month period may regain CalFresh eligibility by satisfying the work requirement for 30 consecutive days. Verification of satisfying the work requirement is required prior to granting eligibility. For more information on verifying the work requirement, review Desk Aid Able-Bodied Adults Without Dependents (ABAWD) Verifications. The 30 consecutive day period does not need to be immediately preceding the application date but must be within the fixed 36-month period. If an ineligible ABAWD is being reinstated to an existing case, follow the policy to add a person to the HH. A new application is required when a case has discontinued.

11. Additional Three Consecutive Months of Benefits

ABAWDs who were discontinued for receiving three full countable months in a 36-month period may receive an additional three consecutive months of benefits if they have:

- Exhausted their three countable months and have been discontinued, then
- Regained eligibility by meeting the work requirement for 30 consecutive days anytime in the fixed 36-month period, and
- Subsequently stopped meeting the work requirement.

The additional three consecutive months of benefits may only be used once in a 36-month period. ABAWDs must comply with all reporting and eligibility requirements while receiving the three consecutive months of benefits, including any mandatory mid-period reports, the Eligibility Status Report (SAR 7), and recertification. Failure to comply with CalFresh reporting and eligibility requirements during the three consecutive months may result in discontinuance and loss of any remaining consecutive months of CalFresh benefits. Refer to the examples below regarding the eligibility determination of these months and the corresponding calendar tracking.

Example 1	
Scenario	An ABAWD does not satisfy the work requirement for April, May, and June and receives their three full countable months in a 36-month period. CalFresh is discontinued July 1. The ABAWD gains employment, satisfies the work

	requirement for 30 consecutive days, and regains CalFresh eligibility. The ABAWD then reports losing their job on September 1.
Outcome	The ABAWD is eligible for the additional three consecutive months of benefits. September, October, and November are the three additional consecutive months, and the ABAWD will discontinue December 1, unless they meet an exemption or satisfy the work requirement.

Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
9	9	9	N	N	N	9	W	C	C	C	9

9= Inactive, **N**= Countable month, **W**= Satisfied work requirement,
C= One of three additional consecutive months

Example 2	
Scenario	The ABAWD does not satisfy the work requirement for January, February, and March and receives their three full countable months in a 36-month period. CalFresh is discontinued April 1. The ABAWD gains employment, satisfies the work requirement for 30 consecutive days, and regains CalFresh eligibility. The individual then reports they lost their job on June 20.
Outcome	The ABAWD is eligible for an additional three consecutive months of benefits. July, August, and September will be the three consecutive months, and the ABAWD will discontinue September 1, unless they meet an exemption or satisfy the work requirement.

Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec
N	N	N	9	W	W	C	C	C	9	9	9

9= Inactive, **N**= Countable month, **W**= Satisfied work requirement,
C= One of three additional consecutive months

12. California Food Assistance Program (CFAP)

Until October 1, 2027, ABAWDs receiving CFAP benefits are subject to the ABAWD time limit policy and must be tracked monthly. If an ABAWD becomes eligible to federally funded CalFresh benefits during the 36-month period, reassess their ABAWD status, and create a new 36-month calendar in the automated system separate from CFAP tracking.

ABAWDs newly eligible to receive federally funded CalFresh benefits must receive a new set of three countable months, regardless of whether they previously lost eligibility due to reaching the ABAWD time limit as a CFAP recipient. Do not count previous months received under CFAP against the ABAWD's CalFresh time limit.

13. Notices of Action (NOAs)

For guidance regarding NOAs, refer to Desk Aid Able-Bodied Adults Without Dependents (ABAWD) Client Correspondence.

14. Administrative Hearings

If an ABAWD requests an administrative hearing and they have received three countable months in the 36-month period, then with the issuance of Aid Paid Pending (APP), the third countable month must be removed, and benefits will continue until there is a hearing decision.

If the result of the hearing supports the…	then the…
County,	original third countable month is counted and any benefits received beyond that month will be considered an overissuance.
ABAWD,	benefits are retained and the ABAWD's time limit status must be reviewed for ongoing benefits.

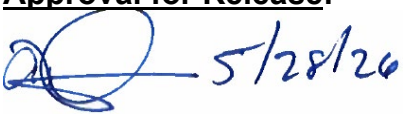
References:

All County Letters (ACLs) 11-22; 16-24; 18-08; 19-93; 22-74; 23-80; 25-41; 25-93; 26-29.
All County Information Notices (ACINs) I-37-01; I-88-16, I-14-26.
Code of Federal Regulations (CFR) 271.2; 273.24; 273.7.
Manual of Policies and Procedures (MPP) 63-407.
Welfare and Institutions Code (WIC) 18926.6.

Sunset Date:

This policy will be reviewed for continuance by 05/31/2029.

Approval for Release:



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Self-Sufficiency Services